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Furtado v. County of Los Angeles, et al., 23AVCV00043

The following are the Court's rulings on the parties' Motions in Limine ("MILs"). Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See *Scott v. C.R. Bard, Inc.* (2014) 231 Cal.App.4th 763.)

Tentative Rulings on Plaintiff's Motions in Limine.

No. 1: TO EXCLUDE EVIDENCE, ARGUMENT, TESTIMONY, REFERENCE, OR OPINIONS REGARDING DECEDENT'S TOXICOLOGICAL FINDINGS AND ALLEGED DRUG USE

Plaintiff's Position: "The Parties have stipulated Decedent was not intoxicated or impaired at the time of the collision, and the retained experts for each side have agreed on that fact as well." (Motion, at 6). "Plaintiff anticipates Defendants will argue that a single instance of drug exposure establishes a general propensity for drug use in an effort to improperly diminish Plaintiff's damages. For the aforesaid reasons, any such argument or evidence in the damages phase should be excluded as it is improper character evidence under Evidence Code § 1101(a)." (Motion, at 8.)

Defendant's Position: "Plaintiff's motion assumes that Defendants seek to introduce Decedent's post-mortem toxicology findings to argue Decedent was a drug user. (Pl.'s MIL No. 1, at p. 7.) That is not the purpose. Evidence Code section 1101, subdivision (a) prohibits character evidence only when offered to prove conduct on a specified occasion. Evidence Code section 1101, subdivision (b) expressly permits evidence of prior conduct when offered for any other relevant purpose. Here, Defendants offer the post-mortem toxicology findings to counter plaintiff's arguments and testimony about a positive future relationship with the Decedent. Like the evidence of Decedent's past domestic violence, and battery and other arrests, the post-mortem toxicology findings show that Decedent was using illegal drugs and that a reunion was unlikely, and would not have been positive." (Opposition, at 5.) "Defendants will not admit the post-mortem toxicology findings to prove intoxication or impairment, but will rely on the evidence for their comparative fault analysis. Dr. Spiehler testified concerning the generally accepted symptoms of methamphetamine withdrawal, including drug-craving and drug-seeking behavior occurring 6 to 18 hours after use, followed by a "crash" with extreme fatigue and sleepiness. (Onysko Decl., Ex. B, Spiehler Depo. p. 52.) These effects can impair cognitive function, perception, reaction time, decision-making, and situational awareness—precisely the faculties a pedestrian must exercise to comply with the Vehicle Code. (See Onysko Decl., Ex. B, Spiehler Depo., at pp. 47-52 [effects of methamphetamine impairment on cognitive function, perception, reaction time, and motor skills].)" (Opposition, at 7.)

RULING: The Motion is GRANTED as to the exclusion at the liability phase of post-mortem tests showing trace amounts of methamphetamines. Evidence Code Section 352. Defendant agrees that the evidence does not prove and will not establish "intoxication or impairment." (Opposition, at 7.) Defendant argues instead that the evidence could show that Decedent was

suffering from symptoms of withdrawal, and that such symptoms could have contributed to the cause of his death (Id.) Defendant points to the deposition testimony of Dr. Speilher in support. (Defense Exhibit B.) The testimony excerpts do not support Defendant's position. Dr. Speilher testifies generally as to symptoms of methamphetamine withdrawal. Dr. Speilher further testified that he has no opinion on whether Decedent was suffering from withdrawal because "I don't know when he used, or was exposed to methamphetamine, and I wouldn't want to speculate on it." (Exhib. B, 52:12-15.) Given that the parties agree that Decedent was not impaired or intoxicated on methamphetamines at the time of death, and the absence of any evidence as to when Decedent last ingested methamphetamines, testimony that Decedent may have been suffering from residual effects of withdrawal or otherwise affected by methamphetamine use is wholly speculative.

The analysis is different with respect to any damages phase of trial. History of Decedent's drug use could be probative "to counter plaintiff's arguments and testimony about a positive future relationship with the Decedent." (Opposition, at 5.) As the Motion seeks to exclude "drug use" in general, the Court DENIES the motion with respect to the admission of evidence of drug use at any damages phase trial. However, if the only evidence in this case of Decedent's drug use is the post-mortem testing, the Court reserves ruling on the admission of such evidence until the time of any damages phase trial.

NO. 2 TO EXCLUDE EVIDENCE, ARGUMENT, TESTIMONY, REFERENCE, OR OPINIONS REGARDING DECEDENT'S ARREST OR MISDEMEANOR CONVICTION FOR DOMESTIC VIOLENCE

Plaintiff's position: "Ms. Furtado is no longer a plaintiff in this case. This matter is brought forth by Decedent's minor child, Aiden Furtado, who is the sole Plaintiff remaining in this case and had no involvement in the arrest or misdemeanor conviction. Thus, these prior bad acts do not have any bearing on the issues of liability, causation, or damages, and do not tend to prove or disprove any element of this case." (Motion, at 2.)

Defense position: "Defendants agree that this evidence is not relevant to liability, and do not intend to offer it at the liability phase. It is, however, highly probative of plaintiffs claimed damages and should be admitted if the trial proceeds to a damages phase. Plaintiff seeks to recover for the loss of his father's love, companionship, comfort, care, assistance, protection, affection, society, moral support, and guidance. (Complaint, para. 29.) The jury must assess the actual value of those losses, which requires understanding the family relationships. A domestic violence conviction involving Decedent and Monique, who is plaintiff's mother and guardian ad litem, is probative of the family environment and the relationships plaintiff claims were taken from him." (Motion, at 2.)

Also: "The jury is entitled to understand the full picture of the family environment in which plaintiff is being raised. The domestic violence conviction arose from Decedent's conduct toward Monique, who is plaintiff's mother. The fact that a domestic violence conviction occurred within the family home five years before Decedent's death bears directly on the nature and quality of the relationships plaintiff claims were taken from him. At deposition, Monique testified that in 2018 (four years before the subject accident), she left the Decedent, who was abusive to her. (Declaration of Molly S. Murphy [Murphy Dec.], Ex. A.) The plaintiff was two-years-old at the time. (Ibid.) Monique did not contact the Decedent or respond to his messages after she left him. (Ibid.) The domestic violence arrest and conviction show that the police, prosecutor and Court took this situation seriously. Monique did not take plaintiff away from the Decedent on a whim. It would unduly prejudice the defense to keep this evidence from the jury. In *Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, 793-974, the Court of Appeal overturned an excessive jury award in favor of parents who were estranged from a decedent and did not know about his addiction issues or incarceration." (Opposition, at 4.)

Ruling. The Motion is DENIED. Evidence of domestic abuse may be relevant to the damages phase of the trial inasmuch as Plaintiff will claim that he has been deprived of his father's love and guidance and companionship. The evidence at issue bears on the nature of the relationship that was allegedly ruptured by the accident.

NO. 3 PLAINTIFF'S MOTION IN LIMINE NO. 3 TO EXCLUDE EVIDENCE, ARGUMENT, TESTIMONY, REFERENCE, OR OPINIONS REGARDING DECEDENT'S PRIOR CRIMINAL HISTORY AND ARRESTS.

Plaintiff's position: "Defendants have not specified exactly what evidence of criminal history or arrests they intend on introducing, the purpose of that evidence, and the foundation. Nonetheless, they have taken the position that they intend on

doing so anyway. When Plaintiff requested a stipulation on this issue, Defendants did not agree. Plaintiff has no record of Decedent having a felony conviction. Thus, Defendants intend on introducing evidence of arrests and misdemeanor conviction to create bias. Any such evidence should be excluded.” (Motion, at 5.) “Here, Defendants intend on introducing Decedent’s arrests and criminal history to the jury for no reason other than to create bias, punish Decedent and Plaintiff, and invoke an emotional reaction from the jury. There is no probative value of the evidence sought to be introduced by Defendants. Presenting such evidence would only serve to evoke an emotional bias against Decedent, confuse the issues, mislead the jury, and invite prejudice and speculation.” (Motion, at 6.)

Defense position: “Defendants agree that this evidence is not relevant to liability, and do not intend to offer it at the liability phase. It is, however, highly probative of plaintiff’s claimed damages and should be admitted if the trial proceeds to a damages phase. Plaintiff seeks to recover for the loss of his father’s love, companionship, comfort, care, assistance, protection, affection, society, moral support, and guidance. (Complaint ¶ 29.) The jury must assess the actual value of those losses, which requires understanding the Decedent and his ability to maintain a relationship with his minor son. Evidence of Decedent’s arrests and convictions is probative of the parent-child relationship that plaintiff claims was taken from him. The Complaint also seeks economic damages, including loss of financial support, gifts and benefits. (Id., ¶ 28.) This evidence is probative of Decedent’s ability to contribute financially to his estranged family.” (Opposition, at 2.)

Evidence: “Criminal records show that Dakota Eugene Dile, referred to in this action by his married name, Dakota Furtado, was arrested for battery on October 21, 2021, and was arraigned on February 18, 2022, less than two months before his April 2, 2022, death. (Request for Judicial Notice [RJN], Ex. A; Murphy Decl., Ex. B.) This evidence is probative that, shortly before his death, the Decedent was still having self-control problems and was not likely to resume his relationship with the family that had left him due to his abuse. Moreover, the Decedent was arrested for trespassing in a separate July 8, 2021, squatting incident, and charged for that offense on October 21, 2021. (RJN, Ex. B.) On August 28, 2018, he pled nolo contendere to a Penal Code section 415(1) charge, fighting in a public place. (RJN, Ex. C.)” (motion, at 2-3.)

RULING: All parties agree that any evidence of a criminal record is not relevant to the liability phase of the trial, so the Motion is GRANTED as to that. Evidence of Decedent’s criminal conduct is relevant to the damages phase of the trial in as much as Plaintiff intends to introduce evidence of Decedent’s lost future wages, life expectancy, and likelihood that Decedent would be in Plaintiff’s life. However, the Court is not convinced that evidence of an arrest -- with nothing more -- is probative of the alleged conduct, or sufficiently probative to outweigh the prejudicial effect. Therefore, the Court provisionally and tentatively rules that evidence of Decedent’s Nolo Contendere plea is admissible and that evidence of Decedent’s domestic abuse apart from the fact of Decedent’s arrests is potentially admissible, and on that basis DENIES the Motion. The Court’s denial is highly contingent on the types of evidence that Plaintiff puts forward at the damages phase of trial.

NO. 4: PLAINTIFF’S MOTION IN LIMINE NO. 4 TO EXCLUDE EVIDENCE, ARGUMENT, TESTIMONY, OR REFERENCE REGARDING THE STATEMENTS MADE IN THE TRAFFIC COLLISION REPORT AND OPINIONS OF CHP OFFICERS AND WITNESSES REGARDING FAULT

Plaintiff’s Position: “The reporting officer, Officer Thomas Lee (“Officer Lee”), was deposed and testified he did not witness the subject collision himself, and that he was basing his determination of fault almost entirely on unreliable witness statements. Similarly, the witnesses did not observe the subject collision either. Defendants have stipulated that the TCR is inadmissible. However, Defendants have advised they still intend on eliciting improper opinions and statements contained in the TCR regarding causation and fault.” (Motion, at 4.) California Vehicle Code § 20013 provides: “No such accident report shall be used as evidence in any trial, civil or criminal, arising out of an accident...” (Motion, at 5.)

“In the instant action, Defendants did not designate any of the CHP officers or percipient witnesses as retained or non-retained experts. However, counsel for Defendants have represented to Plaintiff’s counsel they still intend on introducing evidence of the CHP officers’ opinions—including the reporting officer, Officer Lee—regarding fault and the cause of the collision.” (Motion, at 5-6.)

“Moreover, under *MacLean v. City and County of San Francisco* (1957) 151 Cal.App.2d 133, portions of a police report that are based upon witness statements are inadmissible. “In the present case the excluded report does not disclose on its face whether it is based on the officer’s own observations or upon the observations of third parties. If the latter, the above cases

require its exclusion.” (Motion, at 7.)

Defense position: “Moreover, some officers can testify as to measurements and other observations that do not include opinion. Plaintiff argues that CHP officers cannot opine about an accident they did not observe. Yet, plaintiff intends to introduce testimony from retained experts who did not observe the accident. The CHP officers and other accident scene witnesses observed the post-accident scene, which the retained experts did not. Their perspective is valuable for the jury.” (Opposition, at 4.)

“Plaintiff argues that the defense did not list CHP officers as non-retained experts. Plaintiff is not prejudiced; his counsel took Officer Lee's deposition in 2025. (Murphy Deel., Exs. A and B.) The defense respectfully requests leave to supplement their expert designation to include Officer Lee as a non-retained witness.” (Opposition, at 5.)

RULING: The CHP officer in question has not been designated as a non-retained expert. Accordingly, the Motion is GRANTED to exclude CHP opinion testimony as to the cause of the accident or fault. The CHP officer, and others who responded to the scene of the accident, may testify as to their personal observations and any measurements made. The Court DENIES the Motion to the extent it seeks to preclude use of the accident report to refresh the witness's recollection as to his observations and measurements made. Use of the report to refresh recollection is not improper as long as the proper foundation is laid for using materials to refresh recollection. As to hearsay statements, the Motion is GRANTED to the extent it seeks to preclude the officer from relating statements of witnesses where no exception to the hearsay rule obtains.

No. 5: PLAINTIFF'S MOTION IN LIMINE NO. 5 TO EXCLUDE TESTIMONY AND OPINIONS BY OMID KOMARI

Plaintiff's Position: “Dr. Komari should be precluded from offering any opinions in human factors because he does not possess the “special knowledge, skill, experience, training, or education” required under Evidence Code § 720. The legal standard is not whether a witness is generally educated or experienced in a related field, but whether the witness is qualified in the particular subject matter of the testimony he intends to offer in front of the jury. Here, Dr. Komari's qualifications are not in the area of human factors. Rather, his education and professional experience are entirely in the fields of biomechanics.” (Motion, at 5.)

“Dr. Komari conducted a perception-reaction time (“PRT”) analysis to calculate what Mr. Snow could have perceived at the time of the collision and whether he could have reacted prior to the collision. That analysis presumes that a hazard was perceived and that a reaction could follow. However, Mr. Snow unequivocally testified that he never saw Mr. Furtado at any point prior to the impact.” (Motion, at 7.)

“Dr. Komari testified he adjusted the camera settings based on what he saw with his own “naked eye” that evening, explaining that he modified the camera settings so that “what I could see with my naked eye would be matched on what I could see on the camera.” However, at his deposition, he could not provide the specific camera settings he used to create the video, for example the ISO, shutter speed, exposure, or aperture. When asked how another expert could replicate his testing, he could not provide those settings and confirmed he simply adjusted the camera to match what he personally saw. This self-serving and speculative methodology renders his analysis unreliable. . . . Dr. Komari did not recreate the conditions that existed at the time of the incident. He testified he did not know whether the moon was brighter or darker on the evening of the collision versus at the time of his inspection. He also did not account for any differences between his own vision and Mr. Snow's, and admitted he did not know Mr. Snow's vision or whether he wore corrective lenses.” (Motion, at 8.)

Defense Position: “Dr. Komari holds a Ph.D. and M.S. in Mechanical Engineering with a focus in biomechanics and has testified as an expert in accident reconstruction and related fields more than forty times. (Kalpakchian Decl, Ex. A, Komari Depo., at p. 5:4-5.) He was retained specifically to conduct visibility and nighttime recognition analysis and to calculate and analyze perception reaction time, stopping distance, and vehicle dynamic parameters from the accident reconstruction perspective. (Kalpakchian Decl, Ex. A, Komari Depo., at pp. 11:9-14:2.) His work experience includes subjects within the field of human factors. He has been actively peer reviewed in human factors, including the Society of Automotive Engineers; and he has participated in continued education, training, and seminars in these areas. (Kalpakchian Decl, Ex. A, Komari Depo., at pp. 12:23-13:39.)” (Opposition, at 3.)

"Plaintiff next argues that Dr. Komari's perception-reaction time analysis is speculative and lacks foundation because Snow testified he did not perceive Decedent prior to impact. (MIL No. 5 at pp. 6-7.) Plaintiff's argument mischaracterizes the purpose of Dr. Komari's analysis. Perception-reaction time analysis is standard in accident reconstruction cases and is offered to assist the jury in evaluating whether a reasonable driver would have perceived and reacted to a hazard under the prevailing conditions. Such analysis is relevant and necessary, even when a driver testifies he did not see the pedestrian. Here, Dr. Komari's analysis will assist the jury in evaluating whether Snow was operating his vehicle as a reasonable driver. (Evid. Code, § 210.)" (Opposition, at 5.)

"Dr. Komari conducted his nighttime visibility study on January 30, 2026, at the accident scene using a camera at driver eye height and adjusted his camera settings to match what he observed with the naked eye, a recognized and accepted practice in visibility studies. (Kalpakchian Decl, Ex. A, Komari Depo., at pp. 22:17-23:23.) He took the video in standard format with no post-production manipulation. (Id. at p. 23:17-24:5.) And he accounted for weather conditions provided and noted moon conditions had minimal impact on the video. (Id. at p. 25:14-25 ["I mean, the moon condition is not contributing that much to the visibility over there."].) Plaintiff focuses on minor differences in conditions, which are permissible. Demonstrative evidence need only be substantially similar to the accident conditions, not absolutely identical. (Dirosario v. Havens (1987) 196 Cal.App.3d 1224, 1231.)" (Opposition, at 5.)

RULING. The Motion is DENIED in part. As to Dr. Komari's qualifications, the Court finds them sufficient under Evidence Code Section 702. California construes expert qualifications liberally and asks whether the witness's knowledge will assist the trier of fact on the specific issue. (Sargon Enterprises, Inc. v. University of Southern California (2012) 55 Cal.4th 747, 753; Osborn v. Irwin Memorial Blood Bank (1992) 5 Cal.App.4th 234, 274–275.) Perceived gaps in academic coursework go to weight, not admissibility.

Plaintiff's authorities do not compel exclusion. *People v. Hogan and Howard Entertainment, Inc. v. Kudrow* establish that qualifications on a merely "related" subject are insufficient. Here, there is no mismatch between the Dr. Komari's experience and the opinion offered. *Lowery v. Kindred Healthcare Operating, Inc.* (2020) 49 Cal.App.5th 119 is distinguishable: there, a physiatrist opined on neurological causation of a stroke. This was a subject outside the expert's clinical field, and his declaration was conclusory. Dr. Komari's situation is different. PRT and visibility analysis are part of accident reconstruction, which is his field, and his opinions purport to flow from engineering methodology rather than vague reference to literature.

Regarding the point that Snow did not see Decedent before he hit him, this argument is irrelevant for the reason provided by Defendant. The point of the testimony is whether a reasonable driver would have had time to perceive and react to Decedent's presence.

As to the use of the video itself, the Court reserves ruling and grants Plaintiff's request for a Section 402 hearing. Defendant asserts that the video is a demonstrative. A demonstrative need only be substantially similar to the conditions at issue (*Dirosario v. Havens* (1987) 196 Cal.App.3d 1224, 1231). Imperfect conditions would ordinarily go to weight (*Sargon*, 55 Cal.4th at p. 772). But the Court is concerned by the apparent non-replicability of the video. Dr. Kumari cannot identify the settings used and concedes the demonstrative cannot be reproduced. A demonstrative offered to show what was visible that night, calibrated by an undocumented and admittedly subjective method, cannot be meaningfully tested by the opposing party or a rebuttal expert. That implicates foundation and reliability, and not just weight.

Labeling the video a "demonstrative aid" softens but does not cure the concern if the jury is invited to treat it as a proxy for what a reasonable driver would have perceived.

At the 402 hearing, Defendant can attempt to lay adequate foundation for use of the video as a demonstrative, by establishing the recording parameters from the file metadata, the camera's behavior, and other bases for treating the image as representative. The Court may then determine admissibility, conditional admission with a limiting instruction, or exclusion of the video while permitting the expert's testimony on visibility conditions derived from his on-site inspection.

No. 6: PLAINTIFF'S MOTION IN LIMINE NO. 6 TO EXCLUDE EVIDENCE, ARGUMENT, TESTIMONY, OR REFERENCE BY ANY FIRST RESPONDER OR WITNESS THAT MR. FURTADO WAS IN THE ROADWAY, WALKED INTO THE ROADWAY, OR WAS THE INDIVIDUAL OBSERVED BY WITNESSES PRIOR TO THE COLLISION.

Plaintiff's motion seeks: "An order precluding all parties and their counsel from mentioning, soliciting, referring to, or attempting to convey to the jury in any manner, either directly or indirectly, any testimony, statement, opinion, or argument that Mr. Furtado was in the roadway, walked into the roadway, or was the individual allegedly observed by witnesses prior to the collision."

Plaintiff's position: "Here, not a single individual, including Officer Lee, the percipient witness, any first responders, or even the Defendant himself, Mr. Snow, personally observed the subject collision occur. Cynthia Cardoza and Julia Frazier merely observed an unidentified individual somewhere in the vicinity twenty minutes prior to the collision. Neither witness saw the collision itself, saw the point of impact, or observed whether Mr. Furtado enter the roadway at the time of impact. Further, they described an individual who looked nothing like Mr. Furtado and what he was wearing that evening. Nevertheless, Officer Lee improperly concluded that Mr. Furtado "caused this crash by walking in the roadway in front of traffic" and that it was "highly probable" the unidentified individual observed by the witnesses was Mr. Furtado. These conclusions were not based upon personal observation, but instead upon assumptions, speculation, and hearsay witness statements." (Motion, at 6.)

Defense Position: "The evidence at issue is highly relevant to liability and comparative fault. Percipient witnesses Cynthia Cardoza and Julia Frazier observed a person walking in the southbound lane of the roadway approximately 15–20 minutes before the collision in the immediate vicinity. Officer Thomas Lee documented the scene, witness statements, physical evidence, and his observations. This evidence tends to prove Decedent was a pedestrian who failed to yield the right-of-way and walked into the path of Snow's vehicle. (Veh. Code, §§ 21954, 21950)." (Opposition, at 2.)

"Plaintiff asserts that no witness personally observed Decedent in the roadway. Witnesses Cardoza and Frazier, however, provided detailed, first-hand accounts of seeing a person walking northbound in the southbound traffic lane of 165th Street East, near the west shoulder, approximately 15–20 minutes before the accident. (See TCR, Exhibit 2 to Kalpakchian Decl.; Cardoza Depo., Exhibit 3 to Kalpakchian Decl.) Cardoza described the individual's clothing, hair, and movement, and Frazier corroborated the account. These are admissible percipient observations. Both witnesses may testify to what they personally saw shortly before the accident. Officer Lee may testify to his own observations at the accident scene, which include his observation of the physical evidence (e.g., location of Decedent's body, vehicle damage, debris), and his observation of the absence of other pedestrians in the sparsely populated desert area. Such testimony is not speculation, but evidence of Decedent as the only pedestrian in the area around the time of the accident. (Evid. Code, §§ 702, 800.)" (Opposition, at 3.)

RULING: The Motion as brought is phrased too broadly, and on that basis is DENIED. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659.) The Court cannot say as a matter of course that any and all "testimony. . . . or argument" placing Decedent in the road at the time of the accident should be excluded. Cardoza and Frazier's testimony regarding an individual walking in the road is relevant and probative. Plaintiff is free to cross-examine them on the differences between the person they say they saw and Decedent. Likewise, Officer Lee may testify as to his own observations and measurements from the accident scene, including his observation on the scarcity of pedestrian traffic. But consistent with the Court's ruling on Plaintiff's Motion in Limine No. 4, no person who has not been designated as an expert may offer an opinion on the location of Decedent at time of the accident. To that extent, the Motion is GRANTED.

No. 7: PLAINTIFF'S MOTION IN LIMINE NO. 7 TO LIMIT THE TESTIMONY OF MEDICAL EXAMINER DR. JACQUELYN MORHAIME TO HER PERSONAL OBSERVATIONS AND AUTOPSY FINDINGS

RULING: GRANTED by virtue of the Court's Ruling on Motion for Terminating Sanctions.

No. 8 PLAINTIFF'S MOTION IN LIMINE NO. 8 TO EXCLUDE EVIDENCE REGARDING DEFENDANT SNOW'S CATARACT CONDITION, MEDICAL TREATMENT, AND RELATED MEDICAL RECORDS

Plaintiff's Position: "Snow testified that he was wearing the corrective lenses required by his driver's license at the time of the collision. (Kalpakchian Decl., ¶ 10.) He further testified that he never saw Dakota before impact, suggested he thought he may have struck a dog, continued driving, and only learned he had struck Dakota after stopping approximately 300 feet away and walking back to the area of impact. (Kalpakchian Decl., ¶ 11.) Defendants should not be permitted to use incomplete and heavily redacted medical records, coupled with a request for CACI No. 218, to imply a medical explanation or excuse for Snow's failure to see Dakota when no such defense was pleaded, disclosed in discovery, or supported by evidence." (Motion, at 4.)

Defense Position: "If plaintiff will stipulate not to ask Snow about his vision or otherwise refer to it, the defense will not introduce evidence of his medical record or Snow's statements to his physicians. Plaintiff has not offered to refrain from putting Snow's vision at issue. Significantly, his motion does not seek to preclude all references to Snow's vision. It only seeks to preclude the introduction or reference to medical evidence about that vision and a DMV examination of his vision." (Opposition, at 2) "Again, if plaintiff refrains from commenting on Snow's vision, the defense will not introduce this evidence, which shows that Snow did not have a visual disability, in conformity with the interrogatory response that was attached to the motion." (Opposition, at 2-3.) "The motion also seeks to bar CACI 218. That is not a proper subject for an in limine motion, which is to obtain "a ruling in advance of an evidentiary objection that was bound to come up during the course of the trial." (Pellegrini v. Weiss (2008) 165 Cal.App.4th 515, 530.)" (Opposition, at 3.)

RULING: The Motion is GRANTED to the limited extent that Plaintiff intends to question Snow as to whether he was wearing corrective lenses at the time of the accident. That questioning alone does not implicate the history of Snow's vision. But to the extent Plaintiff raises the issue that Snow had a visual disability and was not able to properly see, even when wearing corrective lenses, the proposed evidence is probative, and to that extent the Motion is DENIED. Testimony from Snow as to past visual examinations, and records from those examinations, may be admissible depending on how presented to the Court.

No. 9. PLAINTIFF'S MOTION IN LIMINE NO. 9 TO PRECLUDE DEFENDANTS FROM DISPUTING THAT DEFENDANT SNOW WAS ACTING IN THE COURSE AND SCOPE OF HIS EMPLOYMENT WITH THE STATE OF CALIFORNIA, BY AND THROUGH THE DEPARTMENT OF FORESTRY AND FIRE PROTECTION, AND TO EXCLUDE CACI NOS. 3701 AND 3703

Plaintiff's Position: "There is no disputed issue for the jury to decide regarding course and scope. Defendant Snow admitted in his sworn discovery responses and at his deposition that he was on duty and was acting within the course and scope of his employment with CalFire at the time of the subject collision. The testimony is unequivocal. Plaintiff has relied on those admissions for the entirety of this case. At the time preparing the Joint Jury Instructions, Plaintiff learned for the first time that Defendants intend on including CACI 3701 and 3703. Despite meeting and conferring multiple times over email, a formal written letter, and in person following the Final Status Conference, Defendants still have not agreed to withdraw CACI 3701 and 3703." (Motion, at 5.)

Defense Position: "Plaintiffs Motion in limine No. 9 seeks to bar two jury instructions proposed by the defense, CACIs 3701 and 3703. That is not a proper subject for an in limine motion, which is to obtain "a ruling in advance of an evidentiary objection that was bound to come up during the course of the trial." (Pellegrini v. Weiss (2008) 165 Cal.App.4th 515, 530.)" (Opposition, at 2.)

RULING. The motion is DENIED. The Court will rule separately on contested jury instructions.

Tentative rulings on Defense MILs:

Defense MIL No. 1: TO EXCLUDE FAMILY PHOTOS IN THE LIABILITY PHASE OF TRIAL AND EXCLUDE NON-PARTY FAMILY PHOTOS IN THE DAMAGES PHASE OF TRIAL

Defense position: "Photos of the family or family events have nothing to do with the accident at issue. They are irrelevant to the liability phase of trial, and can only serve to elicit emotion and unrelated elements to the liability phase. The only remaining plaintiff is Decedent's son, who appears through his guardian ad litem mother. Photos of Decedent with his wife, who settled her claims, and other non-party family members, are not useful to explain the damages at issue." (Motion, at 5.)

"Monique Furtado is no longer a plaintiff. Photos of her with Decedent years before he forced them to leave the state, and years before the incident, create an incorrect impression about her entitlement to damages at this trial. This will cause confusion and may lead jurors to include compensation for her alleged loss as part of an award to the remaining plaintiff, although she has settled her claims. Moreover, the photos suggest a close, loving family relationship that is belied by her own testimony." (Motion, at 5.)

"These photos present 1) an emotional response because the jury will know what is ahead for the Decedent, and 2) a false narrative of his life. Photos taken in the late 2010s do not resemble life in the 2020s for Decedent. Decedent was homeless and using methamphetamine, with a number of mental health demons that plagued him and the family around him. Photos from years prior to the April 2, 2022 incident are not relevant to his condition at death, or what his life might have become." (Motion, at 6.)

Plaintiff's argument: "This case is bifurcated. During the liability phase, no more than two or three photographs will be shown during opening solely for the purpose of introducing the decedent and the plaintiff to the jury. For the damages phase, the photographs are directly relevant to the central issue the jury will be asked to decide regarding the nature of the relationship between Dakota Furtado and his son, Aiden, and the loss Aiden suffered when his father was killed by Defendant Robert Snow. Defendants attempt to characterize these photographs as improper evidence designed to trigger an emotional response from the jury. That is incorrect. The photographs are evidence of Dakota's life, his family, and his relationship with his son. Defendants themselves have made those issues central to this case by repeatedly contending that Dakota had no meaningful relationship with Aiden and that Aiden suffered little to no loss by his father's death." (Opposition, at 2.)

RULING: The Motion is GRANTED in part and DENIED in part. For identification purposes, Plaintiff may display a photograph of decedent during the liability phase. But photos of Decedent with his family, or of Plaintiff at Decedent's memorial service, serve no probative purpose at the liability phase of the trial. The Motion is DENIED with respect to the damages phase of the trial. While the Court does not rule now on the admissibility of any particular photograph, photos of decedent with his family and otherwise participating in life are relevant to assessing plaintiff's damages.

Defendant's Motion in Limine No. 2 TO EXCLUDE DEFENDANT SNOW'S PERSONNEL FILE AND PERSONNEL ACTIONS.

Motion seeks to "(a) preclude evidence of, argument about, or reference to Captain Snow's personnel file and other personnel actions, including his temporary and unrelated demotion after the accident at issue."

Defendant's position: "At Captain Snow's June 18, 2024 deposition, he offered that he (at that time) was not a Fire Captain, and had been demoted four months prior to a Firefighter position. . . . After the deposition, Captain Snow's appeal was granted, his demotion was overturned, and he was reinstated as Fire Captain. (Declaration of Robert Snow, ¶ 3.) He retired as Fire Captain. (Id.) In addition, the demotion was supposed to be removed from his personnel file. (Id.)" (Motion, at 4-5.)

"Inviting the jury to speculate about a demotion that was never formalized and was ultimately reversed creates prejudice. Speculative arguments should be excluded, as they will create a substantial danger of undue prejudice or confuse the issues, or mislead the jury. (Evid. Code, § 352, subd. (b); Snow Dep., June 18, 2024, pp. 19-20.) After his deposition, Captain Snow was vindicated and reinstated to the rank of Captain, which he held when he retired." (Motion, at 6.)

Plaintiff's position: "Snow testified at deposition that he had been demoted. He further testified that the demotion related to an "investigation about yelling." Defendants' own motion confirms that the issue exists, that there was an investigation, and that Snow was demoted before the decision was allegedly reversed. The fact that Snow claims the demotion was later overturned

does not make the entire subject categorically inadmissible. Plaintiff is entitled to explore the facts and ask relevant questions regarding what happened, when it happened, whether Snow was truthful during the investigation, whether the incident involved conduct bearing on his credibility, and whether the incident related in any way to this collision or its aftermath. Plaintiff attempted to obtain those facts from Defendant CalFire's Person Most Qualified, Shane Littlefield, who was instructed not to answer on "privacy grounds." Notably, no claim for any privacy or privilege is raised in Defendants' Motion. Plaintiff should be able to inquire about these issues."

Ruling: The Court GRANTS the motion. Snow was reinstated in his position. Evidence regarding the rescinded demotion is highly prejudicial, and Plaintiff offers no showing of its probative value.

Defendant's Motion in Limine No. 3: TO PRECLUDE EVIDENCE OF OR ARGUMENT ABOUT OTHER ACCIDENTS INVOLVING SNOW.

Defendant's Position. "At deposition, Snow was asked about other accidents, and testified that he has hit a few dogs, but not on the road where the accident occurred. (Declaration of Derek Onysko, Ex. A, Snow Deposition, 42:21-43:17, 75:20-76:14.)" (Motion, at 1.)

"Generally, evidence that a litigant was involved in a prior accident is inadmissible when its only purported relevance is to show a propensity for negligent acts, thus enhancing the probability of negligence on the occasion in suit. (Citations.) The policy basis of this prohibitory rule rests on the fact that the probative force of this kind of evidence is too slight to overbear the dangers of prejudice, distraction by side issues, and unfair surprise. (Downing v. Barrett Mobile Home Transport, Inc. (1974) 38 Cal.App.3d 519, 524-525, citations omitted.) In Downing, the Court of Appeal found reversible error when reference to other accidents was made at trial. (Id. at p. 525.) "Evidence of a driver's previous accidents generally is inadmissible, since it is immaterial in determining his negligence on the occasion in question." (Shmatovich v. New Sonoma Creamery (1960) 187 Cal.App.2d 342, 344, disapproved on other grounds in Prichard v. Veteran's Cab Co. (1965) 63 Cal.2d 727, 732.) Evidence of a prior accident may be admissible to show that a current injury has a cause that precedes the accident at issue. (Downing, supra, 38 Cal.App.3d at p. 525.)"

Plaintiff's Position: "Defendants primarily rely on Downing v. Barrett Mobile Home Transport, Inc. (1974) 38 Cal.App.3d 519 to argue Plaintiff cannot offer evidence of prior accidents to show a propensity for negligent acts. Plaintiff does not dispute the holding of Downing, and that evidence of unrelated prior accidents is generally inadmissible if the only purpose is to argue that because a person was involved in prior accidents, he must have been negligent. But that is not the purpose of offering the evidence here. Plaintiff is not arguing that because Snow testified he had hit dogs before, that means he negligently hit Mr. Furtado. Plaintiff is arguing that the testimony is admissible because Snow testified that he thought he may have hit an animal at the time of the subject collision because he heard a "thump" at the time of the impact and he thought it may have been an animal because "you hit stuff out there all the time: dogs, coyotes, whatever." Plaintiff is entitled to test the factual basis and credibility of that explanation." (Opposition, at 3.)

Ruling: The Motion is GRANTED. Downing v. Barrett. However, if Defendant elicits testimony from Snow that he thought he had hit an animal because of the sound of the thump he had heard, Plaintiff may cross-examine Snow as to whether sound he heard was similar to previous times he had hit an animal.